

Version 1
Classification Confidential

Siemens Energy Global GmbH & Co. KG, SE GT DG GC
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Date March 19th, 2025

Project name: SynCon SEC Group 1
Project reference: GC25_016

Dear Madam or Sir,

We are pleased to offer you the following supplies and/or services as described in the specification and conditions below.

1. Scope of supply

For scope you can refer to a separate technical offer GC25_016_SynCon_SEC_Technical_Offer_v1 dated 14th February 2025.

2. Terms of delivery

2.1. Delivery times

The estimated delivery times for all positions are approximately 12 months for each site after order placement and data clarification. However, these delivery times depend on project load and are subject to discussion.

2.2. INCOTERMS

N/A for scope

Siemens Energy Global GmbH & Co. KG

Freyeslebenstr. 1
91058 Erlangen
Germany

siemens-energy.com

Registered office: Munich, Germany; Commercial registry: Munich, HRA 111200;
Personally liable partner: Siemens Energy Management GmbH;
Chairman of the Supervisory Board: Joe Kaeser;
Executive Board: Christian Bruch, President and Chief Executive Officer; Karim Amin, Maria Ferraro, Tim Oliver Holt;
Registered office: Munich, Germany; Commercial registry: Munich, HRB 241345
SCF V12

2.3. Invoicing and payment

Invoicing of the scope will be carried out in accordance with the delivery progress and the accounting plan, which will be prepared on request upon receipt of an order. In case of delayed delivery invoicing will be suspended. Invoices are payable by the end of the month in which the invoice has been issued.

3. Terms and conditions

The "Terms and Conditions for Deliveries and Services for Siemens Energy-internal Transactions (Siemens Energy Conditions)" in their current version will apply, unless stated otherwise in this offer.

3.1. Taxes, Duties and Fees

Any taxes, custom duties or other fees and charges incurred outside the Federal Republic of Germany are not included in our prices and will be borne by the customer.

3.2. Price Adjustment

The study efforts and prices outlined in this offer are based on the provided status of information at the date of offer and the boundaries of the technical offer description. In the event of any substantial changes in the scope of work or services to be provided, including changes in quantity, quality, or specifications as well as required repetition of works due to changed information by the Customer, the price of the services may be adjusted accordingly. Such adjustments will be made in good faith and will be based on a reasonable estimate of the additional cost resulting from the change. Any adjustment in price will be agreed upon in writing by both parties before any additional work is commenced.

3.3. Period for Document Review

The Customer shall have a period of 14 days from the receipt of the provided documents to review and provide comments to the Contractor. If no comments are received within this cure period, the Contractor shall consider the contract as fulfilled and any change requests made thereafter will be subject to separate charging.

3.4. Destination Control Statement

Deliverables are controlled by the U.S. Government (when labeled with "ECCN" unequal "N") and authorized for export only to the country of ultimate destination for use by the ultimate consignee or end-user(s) herein identified. They may not be resold, transferred, or otherwise disposed of, to any other country or to any person other than the authorized ultimate consignee or end-user(s), either in their original form or after being incorporated into other items, without first obtaining approval from the U.S. Government or as otherwise authorized by U.S. law and regulations. Deliverables labeled with "AL" unequal "N" are subject to European / national export authorization. Deliverables without label, with label "AL:N" / "ECCN:N" or label "AL:9X9999" / "ECCN: 9X9999" may require authorization from responsible authorities depending on the final end-use, or the destination.

3.5. Liability

We shall under no circumstances be liable for: a) indirect, consequential, incidental, punitive or special damages; b) loss of production, loss of profit or revenue, payment of interest and other financing expenses, loss of information and data, loss of use of power system equipment, cost of purchase of replacement power; c) loss of damage to property or d) for claims by Customer for damages of Customer's purchasers or clients.

3.6. Partial ordering

This offer is calculated and valid as a complete package only. If components/ materials or services are ordered separately, we reserve the right to adapt our prices.

3.7. Export reservation

Siemens Energy shall not be obligated to fulfill this agreement if such fulfillment is prevented by any impediments arising out of national or international foreign trade or customs requirements or any embargos or other sanctions.

3.8. Reservation clause

The Parties acknowledge that the outbreak of the military conflict and / or any events related thereto (the "Conflict") between Ukraine and Russia is likely to negatively affect usual business activities around the globe and /or the execution of the Contract in various ways, whether known, unknown, whether foreseeable or unforeseeable. Therefore, the Parties agree that the Contractor shall not be liable for any negative impact or impediment of its performance obligations under or in connection with this Contract arising or being aggravated in connection with the Conflict (the "Impact").

In particular, without limiting the generality of the foregoing, unmanageable and unforeseeable disruptions in the availability of critical materials (e.g. steel products almost exclusively produced in the region of the Conflict) and unpredictable price increases for certain materials, energy and transportation are already visible in the global markets.

Therefore, the Contractor shall be entitled to an extension of time for execution and / or an adjustment of the contract price and / or other reasonable adjustments to the Contract to the extent required to mitigate and / or compensate the Impact. However, the Contractor shall remain obliged to exercise reasonable efforts to mitigate the Impact.

3.9. Ban on re-exports to Russia („No-Russia-Clause“)

- 3.9.1. Siemens Energy hereby prohibits to the Customer, and the Customer agrees not, to re-export and/or forward, directly or indirectly, to Russia or for use in Russia any goods (hardware and/or software and/or technology and related documentation, regardless of the mode of provision) sold, supplied, transferred or exported by Siemens Energy to the Customer under this Agreement.
- 3.9.2. Siemens Energy shall be entitled to terminate this Agreement by written notice in the event of a breach by the Customer of the obligation pursuant to 3.9.1 of this Agreement. Upon termination, the Customer shall pay to Siemens Energy all costs and damages incurred by Siemens Energy from such termination. In any case, the Customer shall pay Siemens Energy liquidated damages in the amount of 20% of the purchase price/delivered goods value.
- 3.9.3. Notwithstanding the provision in 3.9.2, the Customer shall indemnify and hold harmless Siemens Energy in full from and against any claim, proceeding, action, fine, loss, cost and damage asserted by public authorities or other third parties against Siemens Energy arising out of or relating to a breach by the Customer of the obligation under 3.9.1 of this Agreement and the Customer shall compensate Siemens Energy for all losses and expenses incurred resulting thereof.

3.10. Information for purchase order

Please place your order with reference to our ORG-ID **E7700902**

3.11. Validity

This quotation is valid until June 30th, 2025. After this date it is subject to our written confirmation.

4. Information for purchase order

Please inform us about AWV labeling with your purchase order.

5. Prices

The commercial offer reflects the cost for one lot – group 1 considering 3 sites.

The commercial offer pricing is based on a standard task description as detailed in the referenced technical proposal in section 1 of this document with an assumption that the Customer will provide sufficient and accurate data. Any deviations from the description or provided grid data quality may result in additional efforts, impacting both the cost and timing of the project. The Customer will be notified promptly of any identified deviations and their potential impact on cost and execution time.

The below prices shall be subject to below Price Escalation Formula in Annex 1.

1	Project Management	61.800 €
2	PSCAD Model Development	24.720 €
3	PSSE Model Development	43.260 €
4	Powerfactory Model Development	33.990 €
5	Power Flow Study	92.700 €
6	Short-circuit Analysis	37.080 €
7	Network Reduction	278.100 €
8	DMAT (PSSE vs PSCAD)	67.980 €
9	RMS Stability Study (PSSE)	278.100 €
10	EMT Stability Study (PSCAD)	278.100 €
11	Small Signal Stability Study	185.400 €
12	System Strength Assessment	37.080 €
13	Insulation Coordination - lightning	129.780 €
14	Insulation Coordination - switching	129.780 €
15	Voltage Fluctuation	92.700 €
16	HV Breaker TRV Study	92.700 €
17	Grid Harmonic Impedance	185.400 €
18	Harmonics Performance Study	129.780 €
19	Model Validation vs Site Acceptance Test	148.320 €

Total: 2.326.770 EUR

The following applies for the above:

Powerfactory, PSCAD and PSS®E model development considers controller from existing projects such as Walpole and Eversource with 2 variations of the master controller.

Dynamic Model Acceptance test is performed for only one site and one set of parameters.

Sincerely yours,

Siemens Energy Global GmbH & Co. KG


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Sarah Uebel

Annex 1: Price Escalation Formula SE GT GS/ SynCon SEC Group 1

Date: 14.02.2025

Except as otherwise provided in this document each instalment of the Fees, herein referred as payment, shall be subject to adjustment in accordance with the following price indexation formula:

$$P = \frac{P_0}{100} \times \left(20\%F_0 + 80\% \times \frac{L_1}{L_0} \right)$$

Var	Description	Index	Link
P...	Reference time for P is the date of invoice	-	-
P ₀ ...	Price as per this offer dtd. 14.02.2025	-	-
F ₀	Fixed costs share	-	-
L...	Labor cost index according to country of manufacturing site Germany	DESTATIS	Arbeitskostenindizes im Produzierenden Gewerbe und Dienstleistungsbereich

L₀ - Value base Price escalation formula = Last available Index Value at time of offer.

L₁ - Value of Price Index at time of invoice of DG to GT GS

If the index for the respective month is not known, the last known index will be used, and the difference will be charged/credited with the next invoice.